

IN THE HIGH COURT OF JUDICATURE AT BOMBAY

Aditya Sharma vs Union Of India & Ors. ... on 20 January, 2023

[2023] 2 SCR 260, (2022) 2 SCC 506

Bench: J.B. Pardiwala, CJI and Anoop Kumar Mendiratta, J.

JUDGMENT

J.B. Pardiwala, CJI

1. The petitioner, Aditya Sharma, invokes the extraordinary jurisdiction of this Court under Article 32 of the Constitution of India challenging state action concerning arbitrary demolition notices affecting residential dwellings, contending violation of right to shelter under Article 21 and equality under Article 14.
2. Mr./Ms. Naphade, learned Senior Counsel for the petitioner, argued that the impugned measure fails the proportionality standard ? legality, legitimate aim, necessity, and balancing ? recognized in Maneka Gandhi and subsequent authorities.
3. Reliance was placed on (1978) 1 SCC 248 in the case of Maneka Gandhi v. Union of India, and on (2016) 7 SCC 353 in the case of Modern Dental College v. State of M.P..
4. The learned Solicitor General defended the action as falling within reasonable restrictions under Article 19(2) and Article 21 framework, citing national security and administrative exigency.
5. Upon evaluation, this Court finds that while the State has legitimate interests, the absence of procedural safeguards renders the impugned action disproportionate under Articles 14 and 21 of the Constitution of India.
6. The writ petition under Article 32 of the Constitution is accordingly allowed; the impugned notification is quashed and set aside.

Anoop Kumar Mendiratta, J. - I agree.